



Prescription (Scotland) Act 1987

1987 CHAPTER 36

An Act to amend Part I of the Prescription and Limitation (Scotland) Act 1973; and for connected purposes.

[15th May 1987]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Definition of
"relevant claim".
1973 c. 52.

1.—(1) In section 9 of the Prescription and Limitation (Scotland) Act 1973 (which defines "relevant claim" for certain purposes), after paragraph (c) of subsection (1) there shall be inserted the following—

" or

(d) by the presentation of, or the concurring in, a petition for the winding up of a company or by the submission of a claim in a liquidation in accordance with rules made under section 411 of the Insolvency Act 1986;"

1986 c. 45.

(2) In paragraph (b) of the said subsection (1) the words "(or those sections as applied by section 613 of the Companies Act 1985)" shall be omitted.

(3) The said section 9 as amended by subsection (1) above shall have effect as regards any claim (whenever submitted) in a liquidation in respect of which the winding up commenced on or after 29 December 1986.

Short title and
extent.

2.—(1) This Act may be cited as the Prescription (Scotland) Act 1987.

(2) This Act extends to Scotland only.